

Ready, Willing and Able (RWA)

BINDING DECLARATION OF READINESS TO PERFORM | RSK-RWA-08

This declaration is issued by the Declarant to the Counterparty in connection with the transaction described below and is to be read together with the offer, LOI, POP or other documents referenced.

RWA REFERENCE NO. _____ DATE _____
SCO / FCO REF. _____ SPA REF. _____

01 Declarant

COMPANY NAME _____
REGISTRATION NO. _____ COUNTRY _____
REGISTERED ADDRESS _____
REPRESENTED BY _____ POSITION _____
Capacity of the Declarant (mark one):
☐ Buyer ☐ Seller

02 Counterparty

COMPANY NAME _____
COUNTRY _____ ATTENTION OF _____

03 Transaction

PRODUCT / COMMODITY _____
QUANTITY PER SHIPMENT _____ TOTAL QUANTITY _____
PRICE _____ CURRENCY _____
INCOTERM AND NAMED PLACE _____ DELIVERY PERIOD _____

04 Declaration and Undertaking

- 4.1** The Declarant declares that it is **ready, willing and able** to perform the transaction described above in the capacity marked above, that is, to purchase and pay for the Product as Buyer, or to sell and deliver the Product as Seller.
- 4.2** **Ready:** it has all corporate approvals, authority and resources needed. **Willing:** it has no intention to withdraw. **Able:** the funds (Buyer) or the Product (Seller) are available and free of liens and encumbrances, as evidenced by the Bank Comfort Letter or Proof of Product where issued.
- 4.3** The Declarant irrevocably undertakes to execute the Sales and Purchase Agreement on the terms stated above within _____ **banking days** of the Counterparty's written acceptance, and to perform it in good faith.
- 4.4** This declaration is irrevocable and remains valid for _____ **days** from its date. It may not be withdrawn or varied during that period without the Counterparty's written consent.
- 4.5** If the Declarant fails to perform without lawful justification, it shall compensate the Counterparty for its direct losses and reasonable costs, including fees owed to intermediaries under any related IMFPA.
- 4.6** The Declarant confirms that it has read and understood this undertaking, that the signatory is duly authorised, and that it is intended to be legally binding under the governing law stated below.
- 4.7** This declaration is confidential, and any NCNDA between the Parties remains in force. The Declarant shall comply with applicable sanctions, export control, anti-corruption and anti-money-laundering laws.

05 Governing Law and Dispute Resolution

GOVERNING LAW			
ARBITRATION RULES / COMPETENT COURTS			
SEAT / PLACE OF JURISDICTION		LANGUAGE OF PROCEEDINGS	

06 Signature

NAME		TITLE	
PLACE		DATE	

DECLARANT: SIGNATURE AND STAMP

RSK TRUST & TRADE
INTERNATIONAL COMMODITIES